ASYLUM-SEEKERS IN OUTER SPACE, A PERSPECTIVE ON THE INTERSECTION BETWEEN INTERNATIONAL SPACE LAW AND U.S. IMMIGRATION LAW

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[W]e'll soon have to grapple with the question: what law should govern, not only the relationship between Earth (particularly the United States) and space societies but, perhaps more importantly, what law should govern within space societies themselves and among space inhabitants who will people space communities...[1]

Like the advent and rapid proliferation of human activity in outer-space, the law surrounding asylum is heavily steeped in international law and was, in many cases, fueled and shaped by the fear-driven competition between the super-powers during the Cold War.[2] From the time *Sputnik* was launched in 1957, the U.S. began to fear it was lagging behind Soviet scientists in

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[1] Justice William J. Brennan, Jr., address at the American Law Institute Annual Dinner (May 21, 1987).

[2] *See* Yun Zhao, *An International Space Authority: A Governance Model for a Space Commercialization Regime* 30 J. OF SPACE L. 277 (2004) ("The race for accomplishment in outer space was a mark of the Cold War period."). Clearly, the law (including the U.S. Supreme Court) was impacted by the fervor of the Cold War era.

> This was the beginning of the cold war, and the nation was much concerned with national security and the likelihood that Communists and Communist sympathizers were serving in critical positions in government, or were acting as spies for the Soviet Union. Some of these concerns proved justified, as in the case of Alger Hiss, and of Julius and Ethel Rosenberg. Others were quite trumped up, such as Senator Joe McCarthy's demanding to know "who promoted Major Peress"—an Army dentist stationed at Form Monmouth.

WILLIAM H. REHNQUIST, THE SUPREME COURT 193 (Knopf) (2004). *See also* Bruce Moomaw, The Space Age Born of The Cold War is Over, www.spacedaily.com/news/oped-03e.html (Feb. 2, 2003) (last visited June 16, 2006).

technology and space exploration.[3] The end of the Cold War has led to a revitalized level of cooperation between and among industrialized and technologically advanced nations that will lead to an increase in space travel involving nationals of more than one country as well as a high probability that multi-national teams of astronauts and cosmonauts will live and work together within the confines of various vessels, both in the form of space stations (the most notable being the *International Space Station* (*ISS*) and more permanent (though not yet realized) space settlements.[4]

While it is generally accepted that the most likely location of these yet-to-exist settlements will be the Moon, and later Mars, the precedents developed both in U.S. domestic law and within the broader context of international law will provide the foundation for the system of governance that will affect generations of humans living in future "realities" we may not yet comprehend or even imagine.

This essay will examine potential situations where an individual engaged in space travel or space-habitation attempts to seek protection under U.S. law and either remain in the U.S. indefinitely, or at least not return to their country of origin, due to a fear of persecution or torture in her country of origin.

Admittedly, at this time, this is a highly speculative essay that attempts to predict the likely intersection between U.S. immigration law with the legal authority and background that comprise the field of space law. The fact that this article is "highly speculative" does not detract from its relevance, how-

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[3] CNN Interactive, *Cold War Experience – Life Without the Cold War*, www.cnn.com/SPECIALS/cold.war/experience/technology/) (last visited June 16, 2006).

[4] *See* Patrick Collins & Koichi Yonemoto, *Legal and Regulatory Issues for Passenger Space Travel* http://www.spacefuture.com/pr/archive/legal_and_regulatory_issues_for_passenger_space_travel.shtml (last visited June 8, 2006).

> As the Cold War and its imperatives recede into the past, there is debate about the proper role of government space agencies. Although space science is appropriate for government funding on a par with other scientific research, it is increasingly recognized that government organizations developing vehicles and performing space activities conflict with the objective of encouraging the growth of commercial space activities.

Id.

ever.[5] Intersections of existing areas of law and outer-space travel and habitation are inevitable and challenging.[6] Numerous examples of intersections between traditional law and other types of technological advancements exist. For example, U.S. Fourth Amendment law has been highly affected by the advent of technology as computers are frequently utilized in more sophisticated types of criminal activity than that seen before the dawn of the "Information Age."[7] U.S. First Amendment law has been, or will be, almost completely redefined because of the rapid increases in technology.[8] Not because of the way it will handle new messages, but, instead how it will handle the Internet, a new *medium* with a level of speed and expansive "publication" that could not be imagined just a generation earlier.[9]

This essay represents an early attempt at what I believe will be a dramatic expansion of limitless areas of the law as human beings begin to reside outside the confines of "this small planet" we call Earth.[10] Just as intellectual property law is now

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[5] Other highly relevant articles have been written about the intersection between space law and more traditional areas of jurisprudence. *See e.g.*, Hans P. Sinha, *Criminal Jurisdiction on the International Space Station*, 30 J. SPACE L. 85 (2004); Paul M. Secunda, *A Mosquito in the Ointment: Adverse HIPAA Implications for Health-Related Remote Sensing Research and a "Reasonable" Solution*, 30 J. SPACE L. 251 (2004).

[6] *See e.g.*, Ruwantissa Abeyratne, *The Application of Intellectual Property Rights to Outer Space Activities* 29 J. SPACE L. 1 (2003); Sinha, *supra* note 5; Secunda, *supra* note 5.

[7] *See generally* Morgan Cloud, *Rube Goldberg Meets the Constitution: The Supreme Court, Technology and the Fourth Amendment* 72 MISS. L.J. 5-9 (Fall 2002).

[8] *See* MARC M. HARROLD, OBSERVATIONS OF WHITE NOISE: AN 'ACID TEST' FOR THE FIRST AMENDMENT (iUniverse 2005).

> In the grand scheme, America is experimental-theater to the time-tested dramas of Europe, Asia, Africa and the Middle East. We are governed by a relatively brief document drafted by wealthy farmers in an Agrarian society, challenged by the advent of Industrialization, and now attempting to "plug itself in" to the Information Age brought on by a dramatic technological revolution.

Id. at 111.

[9] A final example can be found within the realm of property law. The dramatic rise of intellectual property law into every facet of society has prompted certain practitioners and scholars to conclude that a basic legal education should include not only the traditional types of property law: real and personal, but also less tangible types of property collectively coined as "intellectual."

[10] "For in the final analysis, our most basic common link, is that we inhabit this small planet, we all breath the same air, we all cherish our children's futures, and we are all mortal." John F. Kennedy, *Speech at The American University*, Washington, D.C., June 10, 1963.

deemed by many to be a crucial area for any attorney because of this (almost) co-equal type of property law, a generation from now, space law, and the manner in which it effects other areas of jurisprudence, may become a core topic for a basic legal education.

As a final introductory note, though the speculative nature of this essay does not detract from its relevance, this high level of freestyle prediction does allow for an amount of exposition seldom appropriate in an academic setting. This is an opportunity of which I take full advantage.

I. RELEVANT SPACE LAW AUTHORITY AND BACKGROUND

For our purposes, the relevant space law authority and background will stem almost exclusively from international treaties while applicable U.S. immigration law, detailed in Part II, *ante*, will stem primarily from U.S. domestic law in the form of federal statutes.[11]

The first major international treaty at issue is the *Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies*, hereinafter "Outer Space Treaty."[12] The most relevant provisions are: Articles II, III and V.

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[11] One exception will be brief discussion in Part II related to the "Convention Against Torture" or "CAT" which is derived from Article III of the U.N. Convention Against Torture. Withholding of Removal stems from the same treaty obligation but is codified into the I.N.A. Part III(a), *ante*, will include discussion of laws specifically related to the International Space Station (I.S.S.) (which stem, in part, from Treaty obligations).

[12] Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer Space, including the Moon and Other Celestial Bodies, Jan. 27, 1967, 610 U.N.S.T. 205 (entered into force Oct. 10, 1967) [hereinafter the Outer Space Treaty] (notable depositaries: Russian Federation, United Kingdom of Great Britain and Northern Ireland and United States of America).

> Article II
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> Outer space, including the Moon and other celestial bodies, *is not subject to national appropriation by claim or sovereignty,* by means of use or occupation, or by any other means.[13]
>
> Article III
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> States Parties to the Treaty shall carry on activities in the exploration and use of outer space, including the Moon and other celestial bodies, *in accordance with international law*, including the Charter of the United Nations, in the interest of maintaining international peace and security and promoting international cooperation and understanding.[14]
>
> Article III is important because of its language adhering to international law.
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> Article V ¶ 1
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> States Parties to the Treaty shall regard astronauts as *envoys of mankind* in outer space and shall render to them all possible assistance in the event of accident, distress, or emergency landing on the territory of another State Party or on the high seas.[15]

The Outer Space Treaty contains a section related to the registry of space "object[s]" and is relevant to the law of asylum given the manner in which longer-term space habitation is to be achieved generally.

> A State Party to the treaty on whose registry an *object launched into outer space* is carried shall retain jurisdiction and control over such object, and over personnel thereof, while in outer space or on a celestial body. Ownership of objects launched into outer space, *including objects landed or constructed on a celestial body, and of their component parts,* is

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[13] *Id.* at art. II (emphasis added).
[14] *Id.* at art. III (emphasis added).
[15] *Id.* at art. V ¶ 1 (emphasis added).

> not affected by their presence in outer space or on a celestial body or by their return to Earth.[16]

In the (even far) foreseeable future, it appears that any and all space habitation (as opposed to short-term travel) will take the form of space stations launched into outer-space[17] from the Earth to orbit the Earth in outer-space or settlements built on celestial bodies (primarily the Moon or Mars) built, in part, from materials launched from the Earth to be constructed and updated on the surface of the celestial body.[18]

The next major relevant Treaty is the *Agreement on the Rescue of Astronauts, the Return of Astronauts and the Return of Objects Launched into Outer Space*, hereinafter "Return and Rescue Agreement."[19] The Preamble to the Treaty notes:

> *Noting* the great importance of the Treaty on Principles Governing the Activities of States in the Exploration and Use of Outer States, including the Moon and Other Celestial Bodies,[20] which calls for the rendering of all possible assistance to astronauts in the event of accident, distress or emergency landing, the prompt and safe return of astronauts, and the return of objects launched into outer space.

Return and Rescue Agreement is most relevant in the event of "accident" or "distress" generally in the event of this essay it is most relevant in the context of Part III(c) "*Unplanned Return to Earth*" referred to as "emergency landing," above.

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[16] Outer Space Treaty, *supra* note 12, at art. VIII. (emphasis added). The actual registration of objects launched into outer space is detailed in the Convention on Registration of Objects Launched into Outer Space (Registration Convention) treaty entered into force Sept. 15, 1976 (signatory Secretary-General of the United Nations).

[17] *Id.* ("...object launched into outer space...").

[18] *Id.* ("...including objects landed or constructed on a celestial body, and of their component parts..."). "No humans will live in space itself but rather will live in the machines (i.e., space stations, etc.) which provide an artificial environment for human life." George Paul Sloup, *Legal Aspects of Large Space Structures: Factors Leading to the Development of the Jurisprudence of "Astrolaw"*, PROCEEDINGS OF THE TWENTY-SEVENTH COLLOQUIUM ON THE LAW OF OUTER SPACE 270, 271 (1984).

[19] Agreement on the Rescue of Astronauts, the Return of Astronauts, and the Return of Objects Launched into Outer Space, Apr. 22, 1968, 19 U.S.T. 7570, 672 U.N.T.S. 119 [hereinafter Rescue Agreement] (notable depositaries: Russian Federation, United Kingdom of Great Britain and Northern Ireland and United States of America).

[20] Resolution 2222 (XXI), annex.

II. GENERAL OVERVIEW OF RELEVANT FORMS OF "RELIEF"

A. Introduction

> Since its very beginnings, America has been a refuge for the persecuted—a "city on the hill" beckoning the victims of political, religious, ethnic, and other forms of repression. That tradition continues to this day.[21]

The United States has always been, or at least portrayed itself, as a type of international safe-haven on the world-stage.[22]

A comprehensive review of U.S. immigration law is outside the scope of this discussion.[23] For our immediate purposes, there are three primary forms of relief relevant to this essay: (1) asylum (the most desired form of relief); (2) withholding of removal; and (3) relief under the Convention Against Torture (CAT).[24]

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[21] U.S. Commission on Immigration Reform, *U.S. Refugee Policy: Taking Leadership*, at 1 (1997).

[22] *See* Cato Institute Publication, Michele Pistone, *Asylum Crackdown Threatens Lives and Ideals*, available at www.cato.org/daily/4-08-98.html (last visited June 16, 2006) (article arguing that America's role as a "safe haven" has been diminished due to recent immigration laws).

> Throughout its history, the United States has been a refuge for people fleeing oppression at the hands of their governments. But new immigration laws have put that tradition in jeopardy. They impose procedural hurdles that in many cases will prevent genuine victims of persecution from attaining asylum in the United States.

Id.

[23] Sources of Immigration Power: Commerce Clause: Art I., § 8, cl. 3; Migration and Importation Clause: Art. I., cl. 1; Naturalization Clause: Art. I., § 8, cl. 4; Power to declare war generally.

[24] A chart is provided as Appendix 1 to detail the sometimes confusing distinctions between the three separate forms of relief set forth in this Section.

B. Asylum

U.S. law provides that a refugee,[25] present in the U.S. that demonstrates a well-founded fear of future persecution[26] on account[27] of race, religion, nationality, membership in a particular social group or political opinion.[28] The burden is on the appli-

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[25] The Immigration and Nationality Act (INA) defines "refugee" in § 101(a)(42) (A) as:

> [A]ny person who is outside any country of such person's nationality or, in the case of a person having no nationality, is outside any country in which such person last habitually resided, and who is unable or unwilling to return to, and is unable or unwilling to avail himself or herself of the protection of, that country because of persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion, or....

Immigration and Nationality Act, 8 U.S.C. § 1101 - 1537 (part B omitted). The primary difference between asylum and refugee applicants is "that those seeking refugee status apply from outside the United States. Asylum-seekers must be in the United States or applying for admission at a port of entry." *See* U.S. Department of Justice Executive Office for Immigration Review (EOIR) Office of Legislative and Public Affairs, *Fact Sheet Q & A* (April 28, 2005). In this context, we are dealing with asylum-seekers, not refugees in the legal sense.

[26] One reason that the asylum process is difficult to understand and / or predict is that the core term "persecution" is not defined specifically by statute, regulation or treaty. Generally, "persecution" will involve harm or other suffering inflicted by a government or in the absence of adequate governmental control. Bodily harm is not necessary for a finding of "persecution" in every instance and it appears that "persecution" is harm beyond what the general public may find to be simply unfair or unjust. *See e.g., Matter of Kasinga*, Int. Dec. 3278 (BIA 1996).

[27] For discussion of the boundaries of the "on account of" requirement, *see*, INS v. Elias-Zacarias, 502 U.S. 478 (1992).

[28] There are a limitless number of factors that go into the discretionary determination of whether an applicant has demonstrated a fear of persecution on account of the listed factors (race, religion, nationality, membership in a particular social group or political opinion). While the U.S. government is frequently criticized for its handling of this determination and its policies related to grants of asylum, there is no doubt that asylum officers and Immigration Judges have a very challenging task facing them: in many cases trying to predict the future in life and death situations in distant lands while at the same time ensuring that the burdens set forth by Congress and the legislative process are met.

> Asylum cases present significant challenges of both fact and law. How can adjudicators predict what would fall an individual upon return to a distant country? What proof should applicants offer? How can adjudicators tell if the applicant is embroidering the story, or making it up out of whole cloth? What sorts of harm amount to persecution? How great must the risk be to make the fear well-founded? When does persecution have an adequate nexus to one of the five grounds listed in the statute? What is one to make of the most vague or open-ended factor in that list, membership in a particular social group?

cant to demonstrate a "well-founded fear" or "reasonable possibility" that he/she will face persecution (on account of at least one of the listed grounds) if returned to their home country.[29] If an applicant can show past persecution, there is a presumption that future persecution will occur.[30] Regardless of other factors, there are certain outright bars to receiving asylum in the U.S. that would be applicable to the situations described herein.[31] Asylum is a discretionary form of relief.[32] As such, even if an

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> How should asylum claimants be housed and cared for while their cases are adjudicated? Under what circumstances should they be detained?

David A. Martin, *Adelaide Abankwah, Fauziya Kasinga, and the Dilemmas of Political Asylum*, *in* IMMIGRATION STORIES 245, 246 (David A. Martin and Peter H. Schuck, eds. 2005). Beyond being codified into statute under U.S. law, the principle of non-refoulement is recognized as a component of international law. *See* The Office of the United Nations High Commission for Refugees, *Chapter 2 Safeguarding asylum: Challenges to protection*, *in* THE STATE OF THE WORLD'S REFUGEES 2006, *available at* www.unhcr.org/cgi-bin/texis/vtx/publi/opendoc.htm (last visited June 16, 2006). It appears that this principle of international law would be applicable in outer-space:

> At the very heart of the international asylum and refugee protection regime is the right of people whose lives and liberty are at risk to seek safety and security in another state. This principle underpins the notion of *non-refoulement*, which protects people from being returned to the frontiers of a country where they would be placed at risk on account of their race, religion, nationality, membership of a particular social group or political opinion. This principle is now recognized as a component of customary international law and is therefore considered binding on all states, including those that are not signatories to the 1951 UN Refugee Convention.

Id.

[29] INS v. Cardozo-Fonseca, 480 U.S. 421 (1987); Matter of Mogharrabi, 19 I & N. Dec. 439 (BIA 1987).

[30] If an asylum applicant establishes past persecution, there is a presumption of a well-founded fear of future persecution. This presumption can be overcome by the government if it can show that there are changed country conditions since the time of that past persecution. 8 C.F.R. § 208.13(b)(1)(ii).

[31] Individuals who: have firmly resettled in another country prior to arriving in the United States; have ordered, incited, assisted, or otherwise participated in the persecution of any person on account of race, religion, nationality, membership in a particular social group, or political opinion; have a previous conviction of a particularly serious crime (includes aggravated felonies); committed a serious nonpolitical crime outside the United State; pose a danger to the security of the United States; are members or representatives of a foreign terrorist organization; or have engaged in or incited terrorist activity. *See Fact Sheet Q & A*, *supra* note 25.

[32] The power of a nation-state to exclude aliens. This tenet is not only part of domestic U.S. immigration law but also International Law and English Common Law:

> It is an accepted maxim of international law, that every sovereign nation has the power, as inherent in sovereignty, and essential to self-preservation, to forbid the entrance of foreigners within its dominions, or to admit them only in

applicant meets the legal burden to receive relief as an asylee, the Attorney General, through his/her representatives can still deny the application. An applicant applies for asylum in the U.S. through the filing of a Form I-589.[33] An asylum application must be filed within one (1) year of the applicant's arrival in the U.S., unless "changed country conditions" can be provided that articulate why the application was filed later than one (1) year after arrival.[34] There are two general asylum-approaches: affirmative and defensive. Affirmative asylum is when an application (I-589) is filed with the government while the applicant is not "in proceedings" and thus has not been issued a Notice to Appear (N.T.A.).[35] Defensive is when an N.T.A. has been filed and the applicant is "in proceedings." This essay will only require a discussion of affirmative asylum as it is difficult to imagine a situation where an astronaut or similar individual would have been present inside the United States and would have received a N.T.A. prior to traveling into space and then finding himself or herself in one of the situations detailed in Part III, below.[36]

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such cases or upon such conditions as it may see fit to prescribe. Vattel, Lib. 2, §§ 94, 100; Phillimore (3d ed.) c.10, § 220.

Nishimura Ekiu v. United States, 142 U.S. 651, 659 (1892); Attila Ataner, *Refugee Interdiction and the Outer Limits of Sovereignty* 3 J. OF L. & EQUAL. 7, 9 (Spring 2004).

[33] The I-589 is specifically a (form) OMB No. 1615-0067.

[34] Intuitively, if an individual is claiming that they are "fleeing" persecution, it makes more sense for them to come forward on their own instead of remaining in the U.S. for some period of time and then coming forward for asylum (or other type of) relief only after the government begins Removal proceedings. In other words, if you are really "fleeing" persecution, the first thing you would do upon entering U.S. soil would be to claim asylum. Given the situations set forth in Part III, below, the one-year filing will not be relevant.

[35] Put simply: "in proceedings" means that the government has filed paperwork alleging that grounds exist for Removal of the immigrant or alien; thus, the individual is normally attempting to defend against the allegations by filing an asylum claim (defensive). Not "in proceedings" means that the individual comes forward on their own, prior to being issued an N.T.A. or notice by the government that it is going to attempt to remove the individual. Intuitively, if an individual is claiming that they are "fleeing" persecution, it makes more sense for them to come forward on their own instead of remaining in the U.S. for some period of time and then coming forward for asylum (or other type of) relief only after the government begins Removal proceedings. In other words, if you are really "fleeing" persecution, the first thing you would do upon entering U.S. soil would be to claim asylum.

[36] One challenge for any individual seeking asylum, withholding or CAT (or any other type of immigration relief) is, especially post 9/11, a general feeling of "nativism"

C. Withholding of Removal

Withholding of Removal is set forth in the Immigration and Naturalization Act (INA) and implements Article 33 of the 1951 Refugee Convention.[37] Withholding of Removal differs from asylum in that it merely prohibits an alien's return to a specific country, whereas asylum allows an individual to remain in the United States. The U.S. government may, in lieu of allowing the individual to remain in the U.S., remove the individual to a third country where he or she would not be tortured.[38]

D. Convention Against Torture

Relief under the Convention Against Torture (hereinafter, and generally referred to as, "CAT") is a treaty obligation under Article 3 of the United Nations Convention Against Torture.[39] The standard set forth under Article 3 is that signatory nations, in this case the U.S., agrees not to "expel, return or extradite" a

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within the U.S. As a pragmatic note, it would seem that a foreign astronaut is more akin to a famous athlete or artist that seeks to remain in the U.S. after seeking a specific form of relief. "Nativism" is a somewhat cyclical political and social reality that faces individuals attempting to migrate to the U.S.:

> It would not be the first time in American history that nativist sentiment prevailed. When waves of immigrants from Southern and Eastern Europe arrived at the turn of the 20th century, doomsayers argued that the foreigners would never assimilate into Anglo culture. The result: a 1924 law establishing a quota system that sought to limit entry. More recently, the massive immigrant influx of the 1990's provoked a backlash personified by California Gov. Pete Wilson, who tried to deny education and health services to illegal aliens. Though that wave of both legal and illegal immigration has tapered a bit, the proportion of the undocumented has ballooned. According to the studies by the Pew Hispanic Center, the illegal population living in the United States has grown from 5 million in 1996 to as many as 12 million today. Of the total 78 percent came from Mexico and the rest of Latin America—the vast majority of whom were fleeing poverty.

Arian Campo-Flores, *America's Divide*, NEWSEEK (April 10, 2006), at 34-35.

[37] Application for Withholding of Removal / Withholding under CAT is also made on a Form I-589; OMB No. 1615-0067.

[38] Withholding of Removal can be terminated if the case is re-opened and DHS establishes that the alien is not likely to be tortured in that country.

[39] *See* Convention Against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment, Dec. 10, 1984, S. Treaty Doc. No. 100-20, 1465 U.N.T.S. 85.

person to another country where he or she would be subject to torture.[40]

III. SCENARIOS GIVING RISE TO ASYLUM-CLAIMS IN OUTER-SPACE AND ANALYSIS RELATED TO AN EXPANSION OF JURISPRUDENCE

A. International Space Station (ISS)

The *ISS* is the latest in a long-line of space human-habitation arrangements dating back to the early 1970s when three groups of three men each spent twenty-eight days, fifty-nine days, and eighty-four days, respectively on board the *Skylab* space station.[41] These missions were followed by long-term space habitation aboard the Soviet (and later Russian) *MIR* space station.[42] The *ISS* allows a group of humans to live and work in outer-space. The most recent crew staffing the *ISS* is *Expedition 13* and is an international assembly consisting of one U.S. astronaut, one Russian cosmonaut, one European Space Agency astronaut, and one Brazilian astronaut.[43] International cooperation is a valuable component to the *ISS*, however, it is this international cooperation and nationals from more than one nation living and working on the *ISS* (or other "object" contemplated in the Outer Space Treaty Article VIII) that can give rise to a claim of asylum from a non-U.S. citizen astronaut while in an area that can be claimed in a territorial manner by the U.S. because of the language, "A State Party to the treaty on whose

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[40] *See e.g.,* Matter of A-H-, 23 I&N Dec. 774 (BIA 2005). CAT is a more recent form of relief available to the Immigration Courts. The enabling regulations are found at 8 C.F.R. §§ 208.16-18, 1208.16-18.

[41] Skylab Kennedy Space Center, *Skylab Operations Summary*, http://www-pao.ksc.nasa.gov/history/skylab/skylab-operations.htm (last visited July 3, 2006).

[42] MIR (which can mean both "world" and "peace" in Russian) was a highly successful Soviet, and later Russian, orbital station. It was first launched on February 19, 1986 and was "de-orbited" intentionally which caused it to break up re-entering Earth's atmosphere on March 23, 2001. Twenty-eight (28) duration long crews occupied the orbiter. It was occupied for 4,594 days and orbited for a total of 5,511 days.

[43] National Aeronautics and Space Administration, *Space Station Crew*, http://www.nasa.gov/mission_pages/station/expeditions/expedition13/index.html (last visited Aug. 18, 2006).

registry an *object launched into outer space* is carried shall retain jurisdiction and control over such object...."[44]

B. Settlement: Moon or Mars

Overcoming proximity has been the litmus test for technological advancements in space. In other words, it is not a coincidence that humans first traveled around the Earth, then went on to the Moon, and next (most likely) to Mars. It is realistic to believe that if humans are to inhabit celestial bodies specifically, and outer-space generally, the most achievable destinations appear to be dictated by proximity to Earth: the Moon or Mars. This approach is, in fact, the basis of the Vision for Space Exploration. [45]

The scenario of an asylum-seeker in a space settlement, whether on the Moon or Mars, is somewhat more amorphous than simply walking to another sovereign Nation's module of the ISS.[46] The different factual scenarios would be dependent on the level of Nation-State diversity on the celestial body and the advancement of the settlement to include representative humans from different sovereign Nations.

Thus, if the U.S. were to have some type of permanent settlement on a celestial body, and a non-U.S. citizen was to seek asylum while physically present in this settlement, there is a strong argument that the individual should be allowed to avail themselves of the process similar to being on any other sovereign territory of the U.S.[47] While an individual could seek asylum, it is highly likely that, due to the *discretionary nature* of asylum, the Attorney General would deny any grant of asylum

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[44] Outer Space Treaty, *supra* note 12, at art. VIII. *See supra* note 16 and accompanying text.

[45] National Aeronautics and Space Administration, *NASA Invests in Private Sector Space Flight,* http://www.nasa.gov/mission_pages/exploration/main/ (last visited July 3, 2006).

[46] *See supra* Section III.A.

[47] Another reason that this analysis is speculative is that, at least if the individual seeking asylum is an astronaut, (*i.e.,* not a private individual on a commercial spaceflight) the individual seeking asylum, withholding or deferral under CAT is not normally the type of person who finds themselves "on the outs" with their host government. Simply put, in most nations, astronauts are heroes, unlikely targets of persecution or torture.

because of the precedent it would set and the disruption that it would cause to international cooperation amongst nations in outer-space.[48]

While asylum is discretionary, the forms of relief set forth under Article 3 of the U.N. Convention Against Torture and Other Cruel, Inhumane or Degrading Treatment or Punishment[49] are not discretionary and, should the legal burdens for each form of relief otherwise be met, the countervailing harm that it would cause to international cooperation would not be a sufficient, or legally sustainable, reason to deny the forms of relief, respectively.

C. Unplanned Return to Earth

With plans for increased frequency of human space flight and exploration, both governmental and commercial, the frequency of situations where a space flight may have to return to Earth in an unplanned or accidental manner will also proportionally increase.[50] Just as circumstances arise that cause airplanes within Earth's atmosphere to land in a location other than its planned destination, this can also occur when a spacecraft meant to land or "return" to one location on Earth, must land in another.

What happens if an individual of one sovereign Nation is forced to land on Earth in the jurisdiction of another sovereign Nation? For example, what if a Russian Cosmonaut, slated to land a spacecraft in an area controlled by the Russian govern-

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[48] *See supra* note 32 and accompanying text.

[49] The Senate adopted its resolution Oct. 27, 1990 and President Clinton deposited the ratification with the U.N. Secretary General on Nov. 20, 1994. CAT was incorporated into U.S. domestic law through the passage of the Foreign Affairs Reform and Restructuring Act (FARRA), Pub. L. No. 105-277, 112 Stat. 2681, Div. G.

[50] In this section I am only dealing with situations where the landing is forced due to some type of accident or unforeseen set of circumstances and not when an individual might intentionally "defect" with some type of spacecraft to the United States in hopes of smuggling technology or receiving asylum after the fact. There is some precedent for this type of action. For example, on September 21, 1953 "North Korean pilot Lt. Noh Kum Suk defect[ed] and fl[ew] his MiG-15 to Kimpo AB, South Korea. He [was] granted asylum and given $100,000." *See* Air Force Historical Studies Office, *United States Air Force from Establishment to February 1996, available at* www.airforcehistory.hq.af.mil/PopTopics/chrono.htm (last visited June 22, 2006).

ment, or not otherwise controlled by the U.S. for our purposes, is forced to land off the coast of Hawaii or in White Sands, New Mexico? Can the Cosmonaut exit the spacecraft, step foot on "U.S. soil" and apply for asylum in the same manner that a refugee arriving in Hawaii or New Mexico otherwise could? This scenario appears to be the most likely of the three and the one that will occur first.

While, from a more traditional immigration law analysis, it would not appear that the distance traveled to reach sovereign U.S. soil, or whether the U.S. "soil" was on Earth or in space, would alter the legal conclusion, in this case, it appears that it could.

Specifically, the U.S. position taken on the Return and Rescue Agreement during negotiations reveals that many nations did not want the treaty provisions to "take precedent over national statutes providing for asylum."[51] The U.S. position rejects the possibility of asylum and that the Agreement provides for "safe, unconditional and prompt return of astronauts."[52]

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[51] CARL G. CHRISTOL, THE MODERN INTERNATIONAL LAW OF OUTER SPACE 175 (Pergamon Press, 2d ed., 1984). It appears that during negotiations some countries took different stances on this issue. For example, Austria stated that "it wished to be able to continue to offer asylum in keeping with its 'traditional policies towards aliens,' France also supported this interpretation." *Id.* Specifically to the U.S.:

> [I]n testimony before the Senate Committee on Foreign Relations it was stated by Ambassador Goldberg that Article 5 "calls for the unconditional return of astronauts." The same position was taken by the Senate Committee on Foreign Relations in recommending affirmative action by the Senate. In the words of Senator Fulbright, "Article 5 provides for the safe, unconditional, and prompt return of astronauts in the event of accident or other emergency." In his letter transmitting the Treaty to the Senate for its advice, President Johnson accepted the foregoing construction of Article 5.

Id. at 175-76.

[52] One caveat: although it appears that the negotiations and intent at the time of the Return and Rescue Agreement would control, the Nations appear to more specifically contemplate asylum than the other forms of relief, especially those provided for by later U.N. Treaty (*i.e.*, CAT). While it appears that U.S intentions during negotiations would control with regards to asylum (which is discretionary) the analysis is not as clear or easy to predict in the context of CAT where the legal obligations are created by a separate binding treaty.

CONCLUSION

Any time one engages in speculation, it is possible, even probable, that dissatisfaction will follow. This article is written as much to stir discussion and debate as to answer questions in any absolute manner.

All analysis in this context must be tempered by the realistic and pragmatic political ramifications were any of the above scenarios (set forth in Part III(a)-(c), above) to actually occur. I have restricted my analysis as closely as possible to what the applicable law, by analogy in most cases, would require. However, it is easy to imagine how, in the context of space travel, national security, international comity, and the predictable onslaught of world-wide media attention, the United States might act in a manner that does not strictly comply with applicable immigration laws or Treaty obligations.

Finally, this article reveals, beyond its specific substance and analysis, a prime example of an inherent conflict that will challenge our society as we proceed into the new Millennium: increased specialization coupled with more frequent topical overlap. Rapid advances in technology necessitate a sharp increase in the need for the specialization of knowledge. However, these same advances and interweaving of society and technology also leads to an increase in the frequency that normally distinct subject areas will overlap. As humankind is provided with new opportunities to travel and live, an inevitable overlap is created with the existing governing laws of the sovereign Nation-States that fund and conduct such advanced travel and habitation. This specific overlap is just a drop in the bucket; the collision and evolution of bodies of law, both where they conflict and where they can improve or aggregate one another is just one example in an infinite combination of possibilities.